

RFE Response Toolkit

EB2-NIW & EB1A: Endeavor • 3 Prongs • GenAI • LaTeX • Pre-Filing Strategy

Strategic RFE Response System

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Master the Art of RFE Response: EB2-NIW & EB1A

What You Will Learn

- How to understand and respond to USCIS Requests for Evidence (RFEs)
- The 3 Prongs of EB2-NIW under *Matter of Dhanasar*
- Using Generative AI (DeepSeek, ChatGPT, Gemini, Perplexity) for RFE responses
- LaTeX templates for professional 400+ page applications
- Expert opinion letters that address specific RFE concerns
- How to prove "Critical Role" for EB1A
- Aligning your research with U.S. National Interest
- **NEW:** Pre-filing work and pending publications strategy

What is an RFE?

Request for Evidence - Definition

Answer: An RFE is a formal request from USCIS asking for additional documentation or clarification to determine eligibility. **Key Facts:**

- Issued when evidence is missing, insufficient, or unclear
- Response time: typically 30-87 days (depending on the RFE)
- NOT a denial - your case is still alive
- Opportunity to strengthen your petition

Do NOT ignore an RFE. Failure to respond = automatic denial.

RFE vs. NOID vs. Denial

Understanding USCIS Actions

Action	Meaning	Response Window
RFE	Core eligibility gaps found; case still active	30-87 days
NOID	Intent to deny; serious defects	30-33 days
Denial	Case closed; no further evidence accepted	30-33 days for appeal

RFE is the best scenario - you have time to fix the issues.

Why RFEs Happen - Common Triggers

Most Common RFE Reasons for EB2-NIW/EB1A

- ➊ **Endeavor not clearly described** - officer cannot understand what you propose to do
- ➋ **National importance not established** - endeavor seems too local or employer-specific
- ➌ **Well-positioned not proven** - lack of evidence of progress or capability
- ➍ **Critical role not demonstrated (EB1A)** - role seems replaceable
- ➎ **Citation/impact evidence insufficient** - officer questions influence
- ➏ **Expert letters too generic** - not specifically addressing Dhanasar prongs

Most RFEs are fixable with the right strategy.

The Pre-Filing Strategy: Work Done Before Filing

Key Argument: Pending Publications and Work in Progress

The Problem with RFEs:

- USCIS often demands evidence of "already achieved" impact
- But the NIW standard is PROSPECTIVE (*Dhanasar*)
- Officers confuse EB-1A (past achievements) with EB2-NIW (future potential)

The Strategic Answer:

- Show that work was **ALREADY IN PROGRESS** before filing
- Pending publications count as "work done" not "new achievements"
- The papers were told/informed/described in the original petition
- The research was ongoing - not started after filing

"The Papers Were Already Told" - Documentation Strategy

Proving Pre-Filing Work Existed

What you need to show:

- The original petition mentioned the research direction
- Draft manuscripts existed BEFORE the filing date
- Preprints were submitted to arXiv/SSRN before filing
- Conference submissions were made before filing
- Research collaborations were established before filing
- Data collection was completed before filing

How to prove it:

- Email timestamps showing manuscript drafts
- Submission receipts from preprint servers (dated before filing)
- Conference acceptance letters (dated before filing)
- Version control history (GitHub, Overleaf) showing pre-filing work
- Expert letters confirming the work was underway

If you can prove work was ongoing, it is NOT a post-filing achievement.

Pending Publications Are NOT Post-Filing Achievements

The Key Distinction Under Matter of Katigbak

Katigbak bars:

- New papers published AFTER the filing date
- New awards received AFTER the filing date
- New citations earned AFTER the filing date

Katigbak does NOT bar:

- Papers that were SUBMITTED before filing (even if published later)
- Research that was IN PROGRESS at time of filing
- Draft manuscripts that existed before filing
- Work that was "already told" in the original petition

Strategic argument:

"The pending publications represent the natural fruition of work that was already described, in progress, and ongoing at the time of filing. They do not create new eligibility; they merely confirm the viability and execution of the originally proposed endeavor."

Incremental Achievements vs. New Achievements

What Counts as "Incremental" vs. "New"

Incremental (Allowed)	New (Barred by Katigbak)
Paper accepted that was submitted pre-filing	Brand new paper started post-filing
Citation count increase on pre-filing work	Citation from entirely new paper
Conference presentation of pre-filing research	New conference not mentioned before
Grant continuation of pre-filing project	New grant in different field
Expert letter confirming pre-filing capability	Expert letter from new unknown source

Argue that your

achievements are INCREMENTAL (proving ongoing work) not NEW (creating new eligibility).

How to Frame Pending Publications in Your RFE Response

Sample Language for RFE Response

"The RFE suggests that pending publications constitute impermissible post-filing achievements under Matter of Katigbak. This is a misapplication of the precedent. The original petition explicitly described the Petitioner's ongoing research on [TOPIC]. Attached as Exhibit A are email communications showing that draft manuscripts were completed and submitted to journals on [DATE], which is BEFORE the priority date of this petition (March 31, 2025).

The pending publications do not create new eligibility. Rather, they confirm that the proposed endeavor was concrete, viable, and already in progress at the time of filing. The work was already told. The publications are merely the natural output of work that was already described.

USCIS has recognized that post-filing evidence may be considered where it corroborates facts existing at the time of filing. Matter of Katigbak (14 I&N Dec. 45). Here, the pending publications directly corroborate the Petitioner's claim that the research was ongoing."

Building Your Pre-Filing Evidence Package

What to Submit with Your RFE Response

For each pending publication, submit:

- ☐ Email from journal confirming submission date (BEFORE filing)
- ☐ Draft manuscript with version history showing pre-filing work
- ☐ Screenshot of preprint server submission (arXiv/SSRN) dated pre-filing
- ☐ Excerpt from original petition mentioning this research direction
- ☐ Expert letter confirming the work was discussed with them pre-filing
- ☐ Research log or lab notebook showing work dates
- ☐ Overleaf/GitHub commit history showing work before filing

The more documentation you have, the harder it is for USCIS to reject your argument.

Prong 1: Substantial Merit & National Importance

What USCIS Requires

Substantial Merit:

- Economic, scientific, cultural, or other benefits to the U.S.
- Can be shown through industry impact, publications, citations

National Importance:

- Broader implications beyond a single employer or location
- Potential for nationwide impact (prospective standard)
- Not required to have already achieved nationwide impact

Common RFE error: Officer demands "nationwide adoption" - this is EB-1A standard.

Prong 1 RFE Response Strategy

How to Fix National Importance Deficiencies

Evidence to submit:

- .gov citations (Federal Reserve, Science.gov, ERIC)
- .edu citations (Harvard, MIT, Stanford citing your work)
- Expert letters explaining why your endeavor has national implications
- Documentation of broader adoption beyond your employer
- Letters from industry stakeholders describing your impact
- Evidence that your work is used across state lines

Show that your endeavor's benefits extend beyond your immediate location.

Prong 2: Well-Positioned to Advance the Endeavor

What USCIS Requires

Evidence of being well-positioned:

- Education and training relevant to the endeavor
- Experience and track record of success
- Progress made toward the endeavor (publications, prototypes)
- Plan for executing the endeavor (timeline, milestones)
- Access to resources, collaborators, or funding

Common RFE error: Officer demands employer sponsorship or formal job offer.

How to Fix Well-Positioned Deficiencies

Evidence to submit:

- Detailed 5-year roadmap with annual milestones
- Documentation of prior successes in similar work
- Expert letters confirming your capability
- Evidence of ongoing projects (pre-filing)
- Letters from collaborators or potential partners
- Conference presentations, invited talks, workshops
- Peer review certificates (shows recognition by peers)

Self-petitioners are explicitly permitted under 8 C.F.R. § 204.5(k)(4)(ii).

Prong 3: Balancing Test - Waiver Benefits the U.S.

What USCIS Requires

Factors favoring a waiver:

- The endeavor is so urgent that waiting for labor certification would harm U.S. interests
- The nature of work makes standard job testing impossible
- The petitioner has unique qualifications that cannot be easily replicated

Common RFE error: Officer applies PERM labor certification standard.

How to Fix Balancing Test Deficiencies

Evidence to submit:

- Letters explaining why your work cannot be tested through PERM
- Evidence of unique qualifications (rare combination of skills)
- Documentation of urgency (time-sensitive projects)
- Industry letters confirming shortage of experts in your niche
- Evidence that job description would not capture your specific endeavor

This prong is the most subjective - expert letters are particularly powerful here.

What is an "Endeavor"?

Defining Your Proposed Endeavor

Answer: The endeavor is the specific activity you propose to undertake in the United States.

Key principles:

- Must be clearly described (officer must understand what you will do)
- Must be specific, not vague or generic
- Must be something you are already doing or can immediately start
- Can be broader than a single job description
- Self-petitioners can propose independent research or entrepreneurship

Vague endeavors = automatic RFE or denial.

How to Describe Your Endeavor

Structuring Your Endeavor Description

Template for endeavor description:

"I propose to [specific activity] that will [specific outcome] by [specific methods]. This endeavor builds on my [X years] of experience in [field]."

Example:

"I propose to continue my research on AI-driven financial risk modeling, focusing on developing open-source tools for community banks and credit unions to detect fraud and ensure regulatory compliance. This endeavor will enhance financial stability across the U.S. banking system."

Make it concrete, measurable, and connected to U.S. national interests.

Relating Your Work to the Endeavor

Connecting Past Work to Future Endeavor

How to show continuity:

- Show that your proposed endeavor is a natural extension of your existing work
- Cite specific pre-filing achievements that demonstrate capability
- Use expert letters to explain the relationship
- Create a timeline showing past → present → future
- Show that you have already made progress (publications, prototypes, collaborations)

Disconnect between past work and proposed endeavor = Prong 2 deficiency.

Why Use LaTeX for RFE Responses

LaTeX Advantages for Immigration Filings

Benefits:

- Professional formatting (law-firm quality)
- Automatic table of contents and cross-references
- Consistent exhibit numbering
- Easy to update and version control
- Handles 400+ page documents seamlessly
- Free (Overleaf, TeX Live)

What to template:

- RFE response briefs
- Covering letters addressing each deficiency
- Exhibit indexes and organization
- Expert opinion letters

Organizing Your RFE Response in LaTeX

- ➊ **Main file (`master_rfe.tex`):** `\input` for each section
- ➋ **Cover letter (`covering.tex`):** Executive summary addressing each RFE point
- ➌ **Response to each deficiency:** Separate section per RFE issue
- ➍ **Exhibits:** Organized as Exhibit A, B, C...
- ➎ **Expert letters:** Individual files `\input`
- ➏ **Evidence tables:** Publications, citations, peer reviews

Use `\includeonly` to test specific sections while compiling.

Using AI to Draft RFE Responses

Recommended AI Tools:

- **DeepSeek:** Best for legal reasoning and citation finding
- **ChatGPT:** Good for drafting and editing
- **Gemini:** Useful for summarization
- **Perplexity:** Great for finding supporting citations
- **Copilot:** Integration with LaTeX editors

Use multiple AI tools - each has different strengths.

AI Prompt Template for RFE Response

Sample Prompt for Prong 1 RFE

USCIS denied Prong 1 (national importance) of my EB2-NIW petition stating: [COPY RFE TEXT].

My proposed endeavor is: [DESCRIBE ENDEAVOR].

My evidence includes: [LIST EVIDENCE].

Draft a response arguing that:

1. The endeavor has broader implications beyond my employer 2. The officer applied an impermissibly heightened standard 3. My evidence demonstrates potential for nationwide impact

Cite Matter of Dhanasar and the USCIS Policy Manual.

Using AI to Draft Expert Letters for RFEs

AI prompt for expert letter:

Draft an expert opinion letter for Dr. [NAME], PhD in [FIELD], supporting an EB2-NIW petition.

The proposed endeavor is: [DESCRIBE].

The RFE challenges Prong 1 (national importance).

The letter should: - State the expert's qualifications - Describe how they know the petitioner's work - Explain why the endeavor has national importance - Address the specific RFE concerns - Conclude that the petitioner meets Dhanasar standards

Always have experts review and sign AI-drafted letters.

Why Expert Letters Are Critical for RFEs

Expert Letters Address Specific Deficiencies

What expert letters can fix:

- Prong 1: Confirm national importance from independent perspective
- Prong 2: Validate petitioner's capability and unique qualifications
- Prong 3: Explain why standard labor certification is inappropriate
- Help overcome officer's skepticism
- Provide third-party validation of your claims

Generic letters are ignored. Letters must address specific RFE concerns.

Expert Letter Structure for RFE Response

Template for RFE-Focused Expert Letter

- ➊ **Expert qualifications:** Credentials, experience, publications
- ➋ **Relationship to petitioner:** How they know your work
- ➌ **Understanding of the endeavor:** Restate your proposed work
- ➍ **Response to specific RFE issue #1:** Directly address each deficiency
- ➎ **Response to specific RFE issue #2:** Directly address each deficiency
- ➏ **Conclusion:** Statement that you meet Dhanasar standards
- ➐ **Signature block:** Dated, signed, contact information

Each RFE deficiency should have its own section in the expert letter.

8 Variations of Expert Opinion Letters

Different Letter Types for Different RFEs

Variations included in toolkit:

- ① **General NIW support letter** - broad endorsement
- ② **Prong 1 focused** - national importance only
- ③ **Prong 2 focused** - well-positioned only
- ④ **Prong 3 focused** - balancing test only
- ⑤ **RFE response specific** - addresses officer's exact language
- ⑥ **Projection/adoption focused** - future impact
- ⑦ **Critical role (EB1A)** - demonstrates indispensability
- ⑧ **Research profile** - validates scholarly impact

Choose the variation that matches your specific RFE deficiency.

EB1A: Proving "Critical Role"

What USCIS Requires for Critical Role

Evidence of critical role:

- You played a leading or essential role in distinguished organizations
- Your contributions were not easily replaceable
- The organization's success depended on your involvement
- Your role was more than just "normal job duties"

RFE common error: Officer says your role was not "critical" or was "normal duties."

Critical Role RFE Response Strategy

How to Prove Critical Role

Evidence to submit:

- Letters from supervisors describing your unique contributions
- Documentation of projects that succeeded because of your work
- Evidence that you were the lead on key initiatives
- Comparison of your role vs. others at same level
- Metrics showing your impact (revenue saved, efficiency gained)
- Awards or recognition within the organization
- Evidence that replacing you would be difficult or costly

Focus on outcomes that would not have happened without you.

Aligning Research with U.S. National Interest

Why Research Must Connect to National Priorities

U.S. national interest areas (highly valued):

- Artificial Intelligence and Machine Learning
- Cybersecurity and Critical Infrastructure
- Financial Stability and Risk Management
- Healthcare and Public Health
- Workforce Development and Education
- Energy and Climate Technology

Research in these areas is more likely to satisfy Prong 1 national importance.

Validating Journal Rankings

Scopus, Web of Science, and EBSCO

How to prove journal quality:

- Check if journal is in Scopus (scopus.com)
- Check if journal is in Web of Science (clarivate.com)
- Check if journal is in EBSCO (used by U.S. Commerce Library)
- Avoid Beall's List of predatory journals
- Document journal acceptance rate and impact factor

U.S. Commerce Library:

- Indexes journals through EBSCO Business Source Complete
- Having your work in Commerce Library = .gov recognition
- Verifiable by USCIS through search.library.doc.gov

NOID: Notice of Intent to Deny

What is a NOID?

Answer: A NOID is more serious than an RFE - USCIS intends to deny but gives you one last chance. **Key differences from RFE:**

- Shorter response window (30-33 days)
- Officer has already decided to deny unless you prove otherwise
- Requires stronger evidence and legal arguments
- Often involves legal errors, not just missing evidence

Treat a NOID as a near-denial. Respond aggressively with legal arguments.

How to Respond to a NOID

Step-by-step:

- 1 Identify the legal errors in the NOID (wrong standard, misapplied precedent)
- 2 Gather evidence directly addressing each error
- 3 Draft legal brief citing *Dhanasar*, Policy Manual, and case law
- 4 Include expert letters specifically rebutting the NOID's reasoning
- 5 Use same LaTeX template as RFE but with stronger legal arguments
- 6 Respond within 30 days (no extensions)

A well-crafted NOID response can lead to approval.

I-290B: Notice of Appeal or Motion

What is Form I-290B?

Answer: Form used to appeal a denial or file a motion to reopen/reconsider. **Options on I-290B:**

- **Appeal to AAO:** Review by Administrative Appeals Office (no new evidence)
- **Motion to Reopen (MTR):** New evidence not available at filing
- **Motion to Reconsider (MTC):** Legal error in original decision
- **Combined MTR/MTC:** Both new evidence and legal errors

Deadline: 30 days from denial date. No extensions.

Final RFE Response Checklist

Before Submitting Your RFE Response

- ☐ Each RFE deficiency addressed individually
- ☐ Legal arguments cite *Dhanasar* and Policy Manual
- ☐ Expert letters are specific (not generic)
- ☐ Exhibits organized with clear indexing
- ☐ Response submitted within deadline
- ☐ Proof of service attached (if required)
- ☐ Copy retained for your records
- ☐ Delivery tracking obtained
- ☐ Pre-filing work documented with timestamps
- ☐ Pending publications linked to original endeavor description

Missing any RFE point = automatic denial.

Common RFE Response Mistakes to Avoid

What NOT to Do

- ❶ **Responding late:** Even one day late = automatic denial
- ❷ **Missing an RFE point:** Address every single issue raised
- ❸ **Submitting same evidence:** Must add NEW evidence or arguments
- ❹ **Generic expert letters:** Must address specific RFE language
- ❺ **Poor organization:** Officer must find your response easily
- ❻ **Emotional language:** Stick to facts and law
- ❼ **Forgetting exhibits:** Evidence must support every claim
- ❽ **Claiming post-filing achievements as new evidence** (Katigbak violation)

Organization is critical - make the officer's job easy.

RFE Response Timeline

Strategic Timeline for RFE Response

Week	Action
Week 1	Read RFE carefully; identify each deficiency
Week 2	Gather new evidence; contact experts for letters
Week 3	Draft response using LaTeX template
Week 4	AI-assisted refinement; expert review
Week 5	Paralegal review; final formatting
Week 6	Submit response (early, not on deadline day)

Do NOT wait

until the last day. Submit at least 1 week early.

Resources and Templates Included

What You Get in This Course

LaTeX Templates:

- Master RFE response template (50+ pages)
- Cover letter template
- Expert opinion letter (8 variations)
- Exhibit organization template

AI Prompts:

- Prompts for DeepSeek, ChatGPT, Gemini, Perplexity
- Prompts for each prong and each RFE type
- [Prompts for pre-filing documentation strategy](#)

Checklists:

- RFE response checklist
- Expert letter checklist
- Submission verification checklist
- [Pre-filing evidence documentation checklist](#)

RFE Response Toolkit

- Understand the 3 Prongs of Dhanasar
- Use LaTeX for professional responses
- Leverage GenAI for drafting
- Expert letters that address specific RFEs
- Respond on time, respond completely
- Document pre-filing work with timestamps
- Pending publications confirm ongoing work, not new achievements

Your RFE is not a denial - it's an opportunity. This presentation is for educational purposes only. Consult a qualified immigration attorney for legal advice specific to your case.